

[4 EDW. 7.]

*Liverpool and London and  
Globe Insurance Company's Act, 1904.*

[Ch. xxxiv.]



**CHAPTER xxxiv.**

An Act to make provision with reference to the registration under the Companies Acts 1862 to 1900 of the Liverpool and London and Globe Insurance Company and the substitution of a memorandum and articles of association for their existing constitution and regulations and for the repeal of certain Acts relating to such Company and for other purposes. [24th June 1904.]

A.D. 1904.

**W**HEREAS a company (herein-after called "the Company") was formed under the name of the Liverpool Fire and Life Insurance Company by a deed of settlement dated the twenty-first day of May one thousand eight hundred and thirty-six for the purpose of carrying on the business of fire insurance and life insurance and other objects therein mentioned and with a constitution and subject to the provisions in the said deed of settlement set forth :

And whereas the constitution and provisions for regulating the Company were from time to time modified by a supplemental deed of settlement dated the twenty-eighth day of February one thousand eight hundred and fifty-one and by the two next mentioned Local and Personal Acts (that is to say) an Act of the sixth and seventh years of His late Majesty King William IV. intituled "An Act to enable the Liverpool Fire and Life Insurance Company to sue and be sued in the name of the chairman deputy chairman or any one of the directors of the said Company and for other purposes" and herein-after referred to as "the Act of 1836" and an Act of the tenth and eleventh years of the reign of Her late Majesty Queen Victoria intituled "An Act to change the name of the Liverpool Fire and Life Insurance Company and for other purposes relating thereto"



A.D. 1904. — and by the last-mentioned Act (which is herein-after referred to as “the Act of 1847”) the name of the Company was changed to the Liverpool and London Fire and Life Insurance Company and the Company was empowered to sell and purchase capital sums payable after the lapse of a definite interval and interests depending on contingencies unconnected with the duration of a life or lives and to enter into any contract to undertake the business and engagements of another company or society :

And whereas the nominal capital of the Company so constituted as aforesaid was two million pounds divided into one hundred thousand shares of twenty pounds each with powers contained in the said original deed of settlement to diminish or increase its capital as therein mentioned :

And whereas at a general meeting of proprietors of the Company held on the seventeenth day of February one thousand eight hundred and fifty-nine it was (among other things) resolved that the capital of the Company should be converted into stock and that in lieu of the shares then held by the several proprietors the same proportion of stock should be issued to and held by them viz. for every fifty shares on which two pounds each had been paid or was then due one hundred pounds of stock should be substituted and any greater or less number of shares should be converted into a corresponding amount of stock and that the alterations in the Company's deed of settlement necessary to carry out those resolutions should be made and the said resolutions were confirmed at a special general meeting of the proprietors of the Company held on the eighth day of March one thousand eight hundred and fifty-nine :

And whereas by a resolution passed at a special general meeting of proprietors of the Company held on the tenth day of December one thousand eight hundred and sixty-two the directors of the Company were authorised to carry into effect an arrangement for the amalgamation of the Company with the Globe Insurance Company on the terms contained in the agreement herein-after called “the amalgamation agreement” and at the same meeting in order (amongst other things) to carry out the said resolutions of February and March one thousand eight hundred and fifty-nine it was resolved that as from the eighth day of March one thousand eight hundred and fifty-nine the original deed of settlement should be altered as therein mentioned so that the capital of the Company should be two million pounds issuable as stock and so that



such capital might be increased or decreased as expressed in the supplemental deed of settlement herein-after mentioned and the allotment and issue of as much of the said capital of two million pounds as together with the amount thereof already issued would make up the amount of five hundred thousand pounds or one equal fourth part of the said capital should exclusively appertain to and be made by the directors for the time being at their discretion and the allotment and issue of the sum of one million five hundred thousand pounds being the remainder of the said capital should also appertain to and be made by the directors for the time being under the authority nevertheless of a resolution of some general meeting either annual or special of the Company and at the same meeting it was resolved that the total amount payable in respect of calls not made on so much of the capital of the Company as theretofore or then consisted of shares should be and was thereby surrendered and restored to the Company by the several proprietors to the intent that the same might become and be dealt with as part of the unissued capital stock of the Company : A.D. 1904.

And whereas the constitution and laws and regulations of the Company were further modified (in accordance with the said resolutions) by a second supplemental deed of settlement dated the seventh day of January one thousand eight hundred and sixty-three :

And whereas by the Liverpool and London and Globe Insurance Company's Act 1864 (herein-after called "the Act of 1864") the amalgamation agreement was confirmed and it was enacted that the name or style of the Company should be changed into the Liverpool and London and Globe Insurance Company and it was enacted (by section 5 of the said Act) that any proprietor of capital in the Globe Insurance Company entitled under the amalgamation agreement to receive stock of the Company as therein mentioned in lieu of capital of the Globe Insurance Company might on conditions therein mentioned exchange such capital in the Globe Insurance Company for a perpetual annuity payable by the Company and that in every such case the Company in lieu of issuing to such respective proprietor the amount of stock of the Company which he would have been entitled to take as aforesaid should issue the like amount of stock of the Company to trustees in whom should also be vested all stock of the Company exchanged for perpetual annuities under the amalgamation agreement and that all the stock so issued or vested in such trustees should be



A.D. 1904. held by them in trust for the Company as the consideration for the said annuities and as part of the general assets of the Company and be disposable by the Company accordingly and it was further enacted (by section 8 of the said Act) that the original capital of the Company of two million pounds should be deemed to have been as on and from the eighth day of March one thousand eight hundred and fifty-nine issued and issuable and transferable as stock and not as shares and that the amount paid to and retained by the Company upon any shares issued before that day should be stock without liability to further calls on such shares and that the residue of the capital of two million pounds should be issuable and transferable only as stock and (by section 9 of the said Act) that every two pounds of capital stock of the Company should confer and impose on the holder thereof the same qualification powers rights and liabilities (except liability to calls) as under the deeds of settlement and Acts relating to the Company would respectively have been conferred or imposed on the holder of a share and the said Act contained further enactments for giving effect to the amalgamation agreement and the said resolutions :

And whereas under the provisions of section 5 of the Act of 1864 the Company issued stock to trustees in trust for the Company as the consideration for annuities as in the said section mentioned and the amount of the said stock so held in trust on the thirty-first day of December one thousand eight hundred and eighty-six was one hundred and forty-six thousand one hundred and twelve pounds :

And whereas by the Liverpool and London and Globe Insurance Company's Act 1889 (herein-after called "the Act of 1889") the objects of the Company were defined and extended and it was enacted by that Act amongst other things as follows (that is to say) :—

"The capital of the Company shall be two million pounds of which the stock already issued (other than the stock by this Act cancelled amounting to one hundred and forty-six thousand one hundred and twelve pounds) shall be deemed to form part and to be fully paid up and notwithstanding anything in the Act of 1864 contained the unissued capital or any parts thereof may be issued as shares or stock or preference shares or stock and section 8 of the Act of 1864 is hereby repealed so far as



the same provides that the unissued and issuable stock shall be issued and transferable only as stock " : A.D. 1904.

" The capital of the Company may be increased by the resolution of a special general meeting by the creation and issue of ordinary shares or stock or preference shares or stock " :

" In the event of the issue of any stock or shares at a premium the directors may and shall carry the amount received in respect of premium to the reserve fund of the Company " :

" Section 5 of the Act of 1864 so far as the same provides that the stock issued to or vested in the trustees therein mentioned in lieu of being issued to proprietors who have received perpetual annuities in the place of or in exchange for stock shall be held by such trustees in trust for the Company as the consideration for the said annuities and as part of the general assets of the Company is hereby repealed and the said stock vested in such trustees (amounting according to the balance sheet of the thirty-first day of December one thousand eight hundred and eighty-seven to one hundred and forty-six thousand one hundred and twelve pounds) shall be and is hereby cancelled " :

And the said Act contained divers other provisions as to the voting by proprietors and members of the Company at meetings of the Company and as to the liability of the proprietors in the winding-up and otherwise :

And whereas by resolution of the Company passed in the year one thousand eight hundred and ninety the then existing laws and regulations were repealed and new laws and regulations of the Company framed in accordance with the said Acts of Parliament were adopted by the Company :

And whereas by the Liverpool and London and Globe Insurance Company's Act 1898 (herein-after called " the Act of 1898 ") parts of the Act of 1889 were repealed and the objects of the Company were defined and extended and provision was made for vesting the property of the Company in trustees :

And whereas by resolution of the Company passed in the year one thousand eight hundred and ninety-nine the provisions of the Act of 1898 were imported into the then existing laws and regulations of the Company :



A.D. 1904.  
—

And whereas the paid-up capital of the Company amounts to two hundred and forty-five thousand six hundred and forty pounds :

And whereas it is contemplated that the Company shall register itself under the Companies Acts 1862 to 1900 :

And whereas it is desirable to provide for the substitution of a memorandum and articles of association in the terms set forth in the schedule to this Act for the present deeds of settlement and laws and regulations of the Company :

And whereas it is expedient to repeal the Act of 1836 the Act of 1847 the Act of 1889 and the Act of 1898 :

And whereas it is expedient to make such other provisions as this Act contains :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited for all purposes as the Liverpool and London and Globe Insurance Company's Act 1904.

Interpretation.

2. In this Act "the Company" means the Liverpool and London and Globe Insurance Company and "the registration of the Company" means the registration of the Company under the Companies Acts 1862 to 1900.

Substitution of memorandum and articles of association.

3. Upon the registration of the Company the memorandum and articles of association set forth in the schedule to this Act shall (subject to the provisions of the Companies Acts 1862 to 1900 including the powers as regards alteration contained in those Acts) become and be the memorandum and articles of association of the Company in substitution for the existing deeds of settlement and laws and regulations of the Company and shall be treated as having been registered accordingly and all the provisions of the Act of 1836 and of the Act of 1847 and of the Act of 1889 and of the Act of 1898 shall be and the same are by this Act repealed.

Provision for vesting of property in Company.

4. On the registration of the Company all property real and personal including all interests and rights in to and out of property real and personal and including obligations and things in action (but



other than copyhold or customary land or any property situate in any British colony or dependency or any such shares stocks annuities or property as are or is only transferable in books kept by a company or other body or in manner prescribed by or under Act of Parliament) which shall at the date of such registration be held by any person or persons upon trust for the Company shall pass to and vest in the Company for all the estate and interest of such person or persons therein and in lieu of the stamp duties which would have been payable upon the deeds or assurances which in case this Act had not been passed would have been required to pass such property to and vest the same in the Company there shall be paid a stamp duty of five pounds and such duty shall be impressed upon the certificate to be given by the registrar of joint stock companies under the third section hereof and as to the excepted property aforesaid the Company shall on such registration be entitled to all the estate and interest therein to which the Company immediately before such registration was entitled.

A.D. 1904.

5. If any obligation or debt of or thing in or right of action against the Company shall by reason of such vesting as is made by the last preceding section of this Act or by reason of any deed or instrument to be hereafter made become vested in the Company by way of mortgage or security only the same shall not be released or extinguished or become incapable of being enforced but all persons having any interest in or right to enforce the same and the Company shall be entitled to all such interests and rights as they would be entitled to if the same had been vested in a trustee for the Company instead of in the Company and if any interest or right held by any person or persons upon trust for the Company in to or out of any property real or personal held by the Company or any person or persons upon trust for the Company would by reason of such vesting as is made by the last preceding section of this Act and but for this section be merged or extinguished in such property such interest or right shall not be so merged or extinguished but shall remain unmerged and unextinguished in the same manner as if the same had been vested in a trustee for the Company instead of in the Company.

Obligations  
and rights of  
action not to  
be released.

6. The Company shall deliver to the registrar of joint stock companies a printed copy of this Act and he shall retain and register the same and if such copy is not delivered within three months from the passing of this Act the Company shall incur a

Copy of  
Act to be  
registered.



A.D. 1904. — penalty not exceeding two pounds for every day after the expiration of the said three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the said registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Saving for  
general Acts.

7. Nothing in this Act shall be deemed to exempt the Company from the provisions of the Life Insurance Companies Acts 1870 to 1872 or from those of any general Act passed during the present or any future session of Parliament affecting life insurance companies formed previously to the passing thereof.

Saving for  
Act of 1864.

8. Nothing herein contained shall prejudice or affect any of the provisions of the Act of 1864 in force at the commencement of this Act or any of the provisions of the amalgamation agreement of the thirty-first day of December one thousand eight hundred and sixty-two by that Act confirmed in force at the commencement of this Act.

Costs.

9. The costs charges and expenses preliminary to and of and incidental to the procuring obtaining and passing of this Act shall be paid by the Company.



The SCHEDULE referred to in the foregoing Act. A.D. 1904.

THE COMPANIES ACTS 1862 TO 1900.

MEMORANDUM OF ASSOCIATION OF THE LIVERPOOL AND  
LONDON AND GLOBE INSURANCE COMPANY.

Scheduled to the Liverpool and London and Globe Insurance Company's  
Act 1904.

1. The name of the Company is "The Liverpool and London and Globe Insurance Company."
2. The registered office of the Company will be situate in England.
3. The objects for which the Company is established are—
  - (1) To carry on the business of life assurance in all its branches and in particular to grant or effect assurances of all kinds for payment of money by way of a single payment or by several payments or otherwise upon the death or marriage or birth or failure of issue of or the attainment of a given age by any person or persons or upon the expiration of any fixed or ascertainable period or upon the happening of any other contingency or event dependent upon or connected with human life or the occurrence of any contingency or event which would or might be taken to affect the interest whether vested contingent expectant or otherwise of any person or persons in any property subject or not to any such events as aforesaid happening in the lifetime of any other person or persons or upon the loss or recovery of contractual or testamentary capacity in any person or persons :
  - (2) To carry on the business of fire insurance in all its branches and to grant insurances against injury or damage to or loss of property caused by or resulting from lightning hail storm tempests earthquakes explosions the overflow or inundation of water or other misfortune whether of a like or of a different kind and to grant insurances against injury or damage to or loss or damage of property during transit by land or sea and against loss or damage of property by burglary or theft :
  - (3) To carry on the business of accident insurance in all its branches and the insurance of employers against liability for accidents to their workmen or others and to guarantee the fidelity of persons in situations of trust and generally to carry on all



A.D. 1904.

matters of business which now are or may come to be connected with any of the above classes of insurance in any of the various branches thereof or which may be transacted by accident or fidelity or employers' liability insurance companies :

- (4) To carry on the business of marine insurance in all its branches :
- (5) Generally to carry on and transact every kind of guarantee business and every kind of indemnity business and every kind of counter-guarantee and counter-indemnity business and generally every kind of insurance and re-insurance business whether similar or not to any of the preceding and whether now known or hereafter devised :
- (6) To grant annuities of all kinds whether dependent on human life or otherwise and whether perpetual or terminable and whether immediate or deferred and whether contingent or otherwise :
- (7) To contract with leaseholders borrowers lenders annuitants and others for the establishment accumulation provision and payment of sinking funds redemption funds depreciation funds renewal funds endowment funds and any other special funds and that either in consideration of a lump sum or of an annual premium or otherwise and generally on such terms and conditions as may be arranged :
- (8) To purchase and deal in and lend on life reversionary and other interests in property of all kinds whether absolute or contingent or expectant and whether determinable or not or annuities or policies of assurance and to acquire lend money on redeem cancel or extinguish by purchase surrender or otherwise any policy security grant or contract issued made or taken over or entered into by the Company :
- (9) To undertake and execute trusts of all kinds and all kinds of agency business in connexion with any of the purposes of the Company :
- (10) To give to any class or section of those who insure or have other dealings with the Company any right over or in relation to any fund or funds or a right to participate in the profits of the Company or in the profits of any particular branch or part of its business either equally with other classes or sections or otherwise or any other special privileges advantages or benefits :
- (11) To pay satisfy or compromise any claims made against the Company in respect of any policies or contracts granted by dealt in or entered into by the Company which claims it may deem expedient to pay satisfy or compromise notwithstanding that the same may not be valid in law :
- (12) To purchase or otherwise acquire and undertake upon any terms that may be deemed expedient all or any of the business



property and liabilities of any person or company carrying on any business which the Company is authorised to carry on or possessed of property suitable for the purposes of the Company and to carry out such terms : A.D. 1904.

- (13) To enter into any arrangement for sharing profits union of interests joint adventure reciprocal concession or co-operation with any person or company carrying on or engaged in or about to carry on or engage in any business or transaction which the Company is authorised to carry on or engage in and to take or otherwise acquire and hold shares or stock in or securities of and to subsidise or otherwise assist any such company :
- (14) Generally to purchase take on lease or in exchange hire or otherwise acquire any real or personal property and any rights or privileges which the Company may think necessary or convenient with reference to any of these objects or capable of being profitably dealt with in connexion with any of the Company's property business or rights for the time being :
- (15) To sell the undertaking of the Company or any part thereof for such consideration as the Company may think fit and in particular for shares stock policies or securities of any other company having objects altogether or in part similar to those of this Company :
- (16) To promote any company or companies for the purpose of acquiring the undertaking of the Company or any part thereof or all or any of the property rights and liabilities of the Company or for carrying on any business which the Company is authorised to carry on or for any other purpose that may seem conducive to any of the interests of the Company and to hold shares or any interest in any such company and to dispose of such shares and interests and to make and carry out arrangements for giving the Company the entire or partial control or management or benefit of the business of any such company and to guarantee dividends on shares stock debentures mortgages and bonds of any such company :
- (17) To develop and turn to account any land acquired by or in which the Company is interested and in particular by constructing altering pulling down reconstructing decorating furnishing fitting up maintaining and improving buildings and whether the same shall be intended for the occupation or part occupation of the Company or otherwise :
- (18) To invest the moneys of the Company not immediately required in such manner as may from time to time be determined :



A.D. 1904.

- (19) To lend or advance moneys and deposit securities and property to and with such persons and on such terms as may seem expedient and to underwrite or guarantee the subscription of any stocks funds shares debentures mortgages or securities and to subscribe for the same conditionally or otherwise :
- (20) To raise or borrow or secure the payment of money in such manner and on such terms as may seem expedient and in particular by the creation or issue of any mortgages debentures debenture stock bonds or notes :
- (21) To draw accept endorse discount execute and issue bills of exchange promissory notes debentures debenture stock whether expressed to be payable to bearer or otherwise and other negotiable or transferable instruments or securities and in particular to issue to any person interested in any policy in respect of all or any of the premiums paid on any such policy any separate promissory note bill of exchange bond policy or contract providing for the payment to bearer or otherwise whether conditionally or unconditionally of any specified sum at the death of the person whose life is assured by such policy or in some other event :
- (22) To do all or any of the above things in any part of the world and either as principals agents trustees contractors or otherwise and either alone or in conjunction with others and either by or through agents sub-contractors trustees or otherwise :
- (23) To procure the Company to be registered or recognised in any country state or place abroad and to make any investments or deposits and to comply with any conditions necessary or expedient in order to enable the Company to carry on business in any country state or place abroad and to establish or guarantee local companies or branch offices constituted or regulated under or by local laws for the purpose of carrying on any business which the Company is authorised to carry on :
- (24) To sell improve manage develop exchange enfranchise lease mortgage dispose of turn to account or otherwise deal with all or any part of the property or rights of the Company :
- (25) To do all such other things as are incidental or conducive to the attainment of the above objects or any of them The word "Company" in this memorandum shall be deemed to include any partnership or other body of persons whether incorporated or not incorporated and whether domiciled in the United Kingdom or elsewhere.



## THE COMPANIES ACTS 1862 TO 1900.

A.D. 1904.  
—ARTICLES OF ASSOCIATION OF THE LIVERPOOL AND LONDON AND GLOBE  
INSURANCE COMPANY.Scheduled to the Liverpool and London and Globe Insurance Company's  
Act 1904.

## PRELIMINARY.

1. The marginal notes hereto shall not affect the construction hereof Interpretation.  
and in these presents unless there be something in the subject or context  
inconsistent therewith—

“The Company” means the above-named Company ;

“The Act” means the Liverpool and London and Globe Insurance  
Company's Act 1904 ;

“The office” means the registered office for the time being of the  
Company ;

“The register” means the register of members to be kept pursuant to  
section 25 of the Companies Act 1862 ;

“Dividend” includes bonus ;

“Month” means calendar month ;

“In writing” or “written” include printing lithography and other modes  
of representing or reproducing words in a visible form ;

“The directors” means the directors for the time being of the Company  
elected by the members or appointed under Article 70 hereof ;

“The secretary” includes any manager sub-manager or assistant secretary  
actuary or other duly authorised officer acting as secretary ;

“Special resolution” and “extraordinary resolution” have the meanings  
assigned thereto respectively by the Companies Act 1862 sections  
51 and 129 ;

Words importing the singular only include the plural number and vice  
versâ ;

Words importing the masculine gender only include the feminine ;

Words importing persons include corporations.

2. The regulations contained in Table “A” in the First Schedule to the  
Companies Act 1862 shall not apply to the Company. Table “A” not  
to apply.

## CAPITAL.

3. The capital of the Company is two million pounds issued and issuable Present capital.  
and transferable as stock or with the sanction of a resolution of a general



A.D. 1904. — meeting as shares or as preference shares or stock and the allotment and issue of so much of the said capital of two million pounds as together with the amount already issued will make up the sum of five hundred thousand pounds being one equal fourth part of the said capital shall be made by the directors for the time being at their absolute discretion and the allotment and issue of the sum of one million and five hundred thousand pounds being the remainder of the said capital shall be made by the directors for the time being under the authority of a resolution of a general meeting.

Increase. 4. The directors may with the sanction of a resolution passed at an ordinary or special general meeting increase the capital of the Company by the creation and issue of new shares or new stock whether preference or ordinary of or not exceeding such amount and on such terms as in such resolution shall be directed or authorised.

Allotment. 5. The directors may allot and issue such shares or stock to such persons whether members for the time being or not at such prices and in such manner and upon such terms and conditions in all respects as the directors may in their discretion determine subject nevertheless to the directions if any contained in any resolution under the last preceding clause.

Instalments on shares to be duly paid. 6. If by the conditions of allotment of any shares or stock the whole or part of the amount or issue price thereof shall be payable by instalments every such instalment shall when due be paid to the Company by the person who for the time being and from time to time shall be the registered holder of the share or stock or his legal personal representatives.

Reduction. 7. The directors may from time to time with the sanction of a special resolution of a general meeting decrease the capital of the Company by reducing the total quantity of the stock or shares by cancelling unissued unallotted or unappropriated stock or shares or otherwise in such manner as may be deemed expedient and if at any time the directors shall find that they cannot employ to advantage the whole of the capital paid up they shall have power to return any part thereof to the members in proportion to the capital held by them respectively And they shall have power to recall the whole or any part of the capital so returned in the same manner and with and subject to the same powers and conditions as herein-after provided with regard to original calls.

Allotments abroad. 8. It shall be lawful for the directors in issuing shares or stock in foreign countries or in the colonies dominions or dependencies of the United Kingdom to impose restrictions rendering such shares or stock transferable only in the country colony dominion or dependency where the same shall in each case be issued.

Premiums on shares to go to reserve fund. 9. In the event of the issue of any stock or shares at a premium the directors may and shall carry the amount received in respect of premium to the reserve fund of the Company.



## PREFERENCE SHARES OR STOCK.

A.D. 1904.

10. Any shares or stock hereafter issued may be issued with a preferential or guaranteed or qualified right to dividends and in the distribution of assets of the Company and in the return of capital not required and with a special or without any right of voting and generally upon such terms and conditions and with such rights and privileges annexed thereto as the directors with the sanction of a resolution of a general meeting shall from time to time determine. And if at any time the capital by the issue of preference shares or stock or otherwise is divided into different classes of shares or stock all or any of the rights and privileges attached to each class may be modified by agreement between the Company and any person purporting to contract on behalf of that class provided such agreement is confirmed by resolution passed at a separate general meeting of the holders of shares or stock of that class and confirmed by separate general meeting of the holders of shares or stock of the same class convened by the directors expressly for that purpose and held within one month next after such first mentioned meeting and in which confirmation there shall concur at least two thirds in number of the parties present and voting or in case of a poll two thirds of the votes given at such poll in respect of that class of shares and all the provisions herein-after contained as to general meeting shall mutatis mutandis apply to every such meeting.

Preference  
shares or stock.Modification of  
rights of any  
special class of  
shares.

## INCIDENTS OF SHARES AND STOCK.

11. Each member shall be entitled to a certificate in a form prescribed by the directors specifying the stock or shares held by him. Upon every transfer of such stock or shares or any part thereof such certificate shall be given up to be cancelled.

Certificates.

12. If any certificate be worn out or defaced then upon production thereof to the directors they may order the same to be cancelled and may issue a new certificate in lieu thereof and if any certificate be lost or destroyed then upon proof thereof to the satisfaction of the directors and on such indemnity as the directors deem adequate being given a new certificate in lieu thereof shall be given to the person entitled to such lost or destroyed certificate.

Worn out &c.  
certificates.

13. The names and addresses and occupation if any of all the members with the amount of capital held by each shall be entered in a book or books called "The Register of Members". A notice in writing of every change of name or address of any member or in the holding of his stock or shares shall be forthwith left by such member or his transferees or representatives at the office and in default thereof such member shall have no claim in respect of any miscarriage of any notice or other consequence arising therefrom.

Register of  
members.

14. Where two or more persons are registered as joint holders of any stock or shares the person first named upon the register shall for all

Joint holders.



A.D. 1904. — purposes except the transfer of such stock or shares and except when otherwise provided by these Articles be considered the sole and absolute proprietor thereof.

Shares to be personal estate. 15. All stock and shares shall be personal estate and transmissible as such.

Trusts not recognised. 16. Save as herein otherwise provided the Company shall be entitled to treat the registered holder of any share or stock as the absolute owner thereof and accordingly shall not be bound (except as ordered by a court of competent jurisdiction or as by statute required) to recognise any equitable or other claim to or interest in such share or stock on the part of any other person.

#### CALLS.

Calls. 17. The directors may on the issue of stock or shares make the amount or price payable by such instalments as they think fit or as the resolution authorising the issue may direct and may from time to time make such calls in respect of all moneys unpaid on shares as they think fit. Provided that twenty-one days' notice of any call shall be given specifying the time and place of payment and to whom such call shall be paid. The joint holders of shares shall be severally as well as jointly liable for the payment of all calls in respect thereof.

When deemed made. 18. A call shall be deemed to have been made at the time when the resolution of the directors authorising such call was passed.

Interest on calls in arrear. 19. If the sum payable in respect of any call be not paid on or before the day appointed for payment thereof the holder for the time being of the share in respect of which such call shall have been made shall pay interest for the same (at a rate to be fixed by the directors and to be mentioned in the notice of call) from the day appointed for the payment thereof to the time of the actual payment.

Payments in advance of calls. 20. The directors may if they think fit receive from any member willing to advance the same all or any part of the moneys unpaid upon any shares held by him beyond the sums actually called for and upon the moneys so paid in advance or so much thereof as from time to time exceeds the amount of the calls then made upon the shares in respect of which such advance has been made the Company may pay interest at such rate as the member paying such sum in advance and the directors agree upon.

#### FORFEITURE.

Notice of forfeiture of shares if calls not paid. 21. If any member fails to pay any call on or before the day appointed for the payment thereof the directors may at any time thereafter while such call or any part thereof remains unpaid serve a notice on him requiring him to pay the same together with any interest that may have accrued and all expenses that may have been incurred by the Company by reason of such non-payment. The notice shall name a day (not being less than fourteen days



A.D. 1904.

from the day of the notice) and a place on and at which such call interest and expenses are to be paid. The notice shall also state that in the event of non-payment on or before the day and at the place appointed the shares in respect of which such call was made will be liable to be forfeited.

22. If the requisitions of any such notice as aforesaid are not complied with any share in respect of which such notice has been given may at any time thereafter be forfeited by a resolution of the directors to that effect. Such forfeiture shall include all dividends declared in respect of the forfeited shares and not actually paid before the forfeiture. When any share shall have been so forfeited notice of the resolution shall be given to the member in whose name it stood prior to the forfeiture and an entry of the forfeiture with the date thereof shall forthwith be made in the register.

Forfeiture on  
resolution of  
board and  
effect thereof  
&c.

23. All shares forfeited under the preceding or any other clause hereof shall be deemed to be the property of the Company and the directors may sell re-allot and otherwise dispose of the same in such manner as they think fit.

Forfeited shares  
to revert to Com-  
pany and may be  
sold re-allotted  
&c.

24. The directors may annul a forfeiture upon such conditions as they think fit.

Annulment of  
forfeiture.

25. Any member whose shares have been forfeited shall notwithstanding be liable to pay and shall forthwith pay to the Company all calls instalments interest and expenses owing upon or in respect of such shares at the time of the forfeiture and the directors may enforce the payment thereof if they think fit but shall not be under any obligation so to do.

Liability to  
pay calls in-  
terest &c. not-  
withstanding  
forfeiture.

26. The Company shall have a first and paramount lien and charge available at law and in equity on all stock or shares of any person whose name stands upon the register as the holder thereof (whether solely or jointly with another or others) for all debts liabilities and engagements solely or jointly with any other person whether a member or not and either as principal or surety to or with the Company and such lien shall extend to all dividends from time to time declared in respect of such shares. For the purpose of enforcing such lien the directors may sell the stock and shares subject thereto in such manner as they think fit but no sale shall be made until notice in writing of the intention to sell shall have been given to such holders thereof and default shall have been made in the payment fulfilment or discharge of such debts liabilities or engagements for seven days after such notice. The net proceeds of any such sale shall be applied in or towards satisfaction of the debts liabilities and engagements and the residue (if any) paid to such holder.

Company's lien  
on shares.

27. Upon any sale after forfeiture or for enforcing a lien or otherwise under these articles in purported exercise of the powers given by the regulations the directors may cause the purchaser's name to be entered in the register in respect of the shares or stock sold and the purchaser shall not be bound to see to the regularity of the proceedings or to the application of the purchase money and after his name has been entered in the register

Validity of  
sales under  
Articles 23 and  
26.



A.D. 1904. — the validity of the sale shall not be impeached by any person and the remedy of any person aggrieved by the sale shall be in damages against the Company only.

INSTALMENTS ON STOCK.

Instalments on stock.

28.—(1) No person shall be registered as the holder of stock until the full amount or issue price has been paid but where the amount or price of any stock is made payable by instalments the directors may (unless otherwise provided by a resolution of a general meeting) pay or allow interest on such instalments when duly paid at such rate as they may think fit provided that the payment of interest is made one of the terms of issue under clause 5 hereof.

(2) Where the amount or issue price of any stock is made payable by instalments the directors may if they think fit receive from any allottee willing to advance the same all or any part of the moneys owing in respect of the unpaid instalments and upon the moneys so paid in advance or so much thereof as from time to time exceeds the amount of the instalments then due upon the stock in respect of which such advance has been made the directors may pay interest at such rate as the directors may think fit.

TRANSFER AND TRANSMISSION.

Execution of transfer &c.

29. The instrument of transfer of any share or stock shall be signed both by the transferor and transferee and the transferor shall be deemed to remain the holder of such share or stock until the name of the transferee is entered in the register in respect thereof. The instrument of transfer of any share or stock shall be in writing in such form as the directors may from time to time determine or approve.

In what cases directors may decline to register transfer.

30. The directors may refuse to register any transfer of shares or stock where they do not approve of the proposed transferee and they shall not be bound to assign any reason for such refusal.

Transfer to be left at office and evidence of title given.

When transfers to be retained.

Fee on transfer.

31. Every instrument of transfer shall be left at the office for registration accompanied by the certificate of the shares to be transferred and such other evidence as the Company may require to prove the title of the transferor or his right to transfer the shares. All instruments of transfer which shall be registered shall be retained by the Company but any instrument of transfer which the directors may decline to register shall on demand be returned to the person depositing the same. A fee of such amount as the directors may from time to time fix may be charged for each transfer and shall if required by the directors be paid before the registration thereof.

When transfer books may be closed.

32. The transfer books and register of members may be closed during such time as the directors think fit not exceeding in the whole thirty days in each year.

Transmission of registered shares.

33. The executors or administrators of a deceased member (not being one of several joint holders) shall be the only persons recognised by the



Company as having any title to the shares or stock registered in the name of such member and in case of the death of any one or more of the joint holders of any shares or stock the survivors shall be the only persons recognised by the Company as having any title to or interest in such shares or stock.

A.D. 1904.

As to survivorship.

34. Any guardian of any minor member and any curator or committee of a lunatic member and any person becoming entitled to shares in consequence of the death or bankruptcy of any member upon producing such evidence that he sustains the character in respect of which he proposes to act under this clause or of his title as the directors think sufficient may with the consent of the directors (which they shall not be under any obligation to give) be registered as a member in respect of such shares or may (subject to the regulations as to transfers herein-before contained) transfer such shares. This clause is herein-after referred to as "the transmission clause."

Transmission clause.

#### CONVERSION OF SHARES INTO STOCK.

35. The Company in general meeting may convert any paid-up shares into stock and may reconvert any stock into paid-up shares of any denomination.

Conversion shares into stock and re-conversion.

36. When any shares have been converted into stock the several holders of such stock may thenceforth transfer their respective interests therein or any part of such interests in the same manner and subject to the same regulations as and subject to which shares in the Company's capital may be transferred or as near thereto as circumstances will admit. But the directors may from time to time if they think fit fix the minimum amount of stock transferable and direct that fractions of a pound shall not be dealt with with power nevertheless at their discretion to waive such rules in any particular case.

Transfer of stock.

37. The stock shall confer on the holders thereof respectively the same privileges and advantages as regards participation in profits and voting at meetings of the Company and for other purposes as would have been conferred by shares of equal amount in the capital of the Company but so that none of such privileges or advantages except the participation in profits of the Company shall be conferred by any such aliquot part of consolidated stock as would not if existing in shares have conferred such privileges or advantages. And save as aforesaid all the provisions herein contained shall so far as circumstances will admit apply to stock as well as to shares. No such conversion shall affect or prejudice any preference or other special privilege.

Rights of holders.

#### DEBENTURES AND DEBENTURE STOCK.

38. The directors may with the sanction of a resolution of a general meeting raise money for the purposes of the Company by the issue of debentures or debenture stock bearing a fixed rate of interest and redeemable

Debentures and debenture stock.



A.D. 1904. before winding up or payable only on winding up and on such terms and with such incidents as such resolution may direct or as the directors in default of such direction may see fit.

#### GENERAL MEETINGS.

When ordinary  
general meet-  
ings to be held.

39. General meetings shall be held once in each year at such time and place as may be prescribed by the Company in general meeting or if no time or place is so prescribed at such time and place as may be determined by the directors.

Distinction be-  
tween ordinary  
and extraordi-  
nary meetings.

40. The above-mentioned general meetings shall be called "ordinary meetings" and all other meetings of the Company shall be called "extraordinary meetings."

When extra-  
ordinary  
meeting to be  
called.

41. The directors may whenever they think fit convene an extraordinary meeting and the directors shall on the request of the holders of not less than one-tenth of the issued capital of the Company upon which all calls or other sums then due have been paid forthwith proceed to convene an extraordinary meeting and the following provisions shall have effect:—

- (1) The requisition must state the objects of the meeting and must be signed by the requisitionists and deposited at the office and may consist of several documents in like form each signed by one or more requisitionists:
- (2) If the directors do not proceed to convene a meeting to be held within twenty-one days from the date of the requisition being so deposited the requisitionists or a majority of them in value may themselves convene the meeting but any meeting so convened shall not be held after three months from the date of such deposit:
- (3) If at any such meeting a resolution requiring confirmation at another meeting is passed the directors shall forthwith convene a further extraordinary meeting for the purpose of considering the resolution and if thought fit of confirming it as a special resolution and if the directors do not convene the meeting within seven days from the date of the passing of the first resolution the requisitionists or a majority of them in value may themselves convene the meeting:
- (4) Any meeting convened under this clause by the requisitionists shall be convened in the same manner as nearly as possible as that in which meetings are to be convened by directors.

Notice of  
meeting.

42. Seven clear days' notice to the members specifying the place day and hour of meeting and in case of special business the general nature of such business shall be given either by advertisement or by notice sent by post or otherwise served as herein-after provided With the consent in writing of all the members for the time being a general meeting may be convened on a



shorter notice than seven days and in any manner they think fit. Whenever it is intended to pass a special resolution the two meetings may be convened by one and the same notice and it shall be no objection that the notice only convenes the second meeting contingently on the resolution being passed by the requisite majority at the first meeting.

A.D. 1904.

43. The accidental omission to give any such notice to any of the members shall not invalidate any resolution passed at any such meeting.

As to omission  
to give notice.

#### PROCEEDINGS AT GENERAL MEETINGS.

44. The business of an ordinary meeting shall be to receive and consider the revenue account and the balance sheet the reports of the directors and of the auditors to elect directors and other officers in the place of those retiring by rotation to appoint auditors and fix their remuneration to declare dividends and to transact any other business which under these articles ought to be transacted at an ordinary meeting. All other business transacted at an ordinary meeting and all business transacted at an extraordinary meeting shall be deemed special.

Business of  
ordinary  
meeting.

45. Three members personally present shall be a quorum for a general meeting for the choice of a chairman and the declaration of a dividend. For all other purposes the quorum for a general meeting shall be twenty members present in person or by proxy. No business shall be transacted at any general meeting unless the quorum requisite be present at the commencement of the business.

Quorum.

46. At every general meeting the chair shall be taken by the chairman of the directors or in his absence one of the deputy chairmen of the directors or in their absence by a director elected by the members present or in the absence of all the directors by a member qualified to be a director elected by the members present. In the absence of all members qualified to be directors the meeting shall adjourn sine die.

Chairman and  
deputy chair-  
man.

47. If within one hour from the time appointed for the meeting a quorum is not present the meeting if convened by the members shall be dissolved. If convened by the directors with or without requisition of the members the meeting shall stand adjourned to the same day in the next week at the same time and place and if at such adjourned meeting a quorum is not present it shall be adjourned sine die.

Where no  
quorum ad-  
journment for  
a week or sine  
die.

48. Every question submitted to a general meeting shall be decided in the first instance by a show of hands. On the show of hands every member shall have one vote only and proxies shall not be entitled to vote as such unless they be officers of a corporation holding such corporation's proxies. In the case of an equality of votes upon a show of hands the chairman of the general meeting shall have a second or casting vote.

How questions  
decided.  
Casting vote of  
chairman.

49. At any general meeting unless a poll is demanded as mentioned in these articles a declaration by the chairman that a resolution has been carried

Evidence of  
passing of a  
resolution.



A.D. 1904. by a particular majority or lost or not carried by a particular majority and an entry to that effect in the book of proceedings of the Company shall be conclusive evidence of the fact without proof of the number or proportion of the votes given for or against such resolution.

How poll  
taken.

50. If on any question except the election of a chairman or a question of adjournment a poll is demanded by the chairman of the meeting or by eight or more members personally present holding in the aggregate not less than one thousand six hundred pounds capital such poll shall be taken in such manner and at such time and place as the chairman of the meeting directs either immediately or within seven days after the meeting and the result of such poll shall be deemed to be the resolution of the meeting at which the poll was demanded. In case of an equality of votes at the poll the chairman of the general meeting at which the poll was demanded shall have a casting vote in addition to the vote or votes to which he may be entitled as a member.

Adjournment.

51. The chairman may with the consent of the meeting adjourn the same from time to time and from place to place but no such adjournment shall be to a day distant more than three weeks and no business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

Votes of  
members.

52. Every member holding two pounds or upwards of paid-up capital shall have one vote for each two pounds so held up to twenty pounds and every member holding upwards of twenty pounds of paid-up capital shall have an additional vote for each entire ten pounds so held over and above twenty pounds and up to two hundred pounds and every member holding upwards of two hundred pounds of paid-up capital shall have an additional vote for each entire twenty pounds so held over and above two hundred pounds provided that no member shall be entitled to vote in respect of a less sum than two pounds of paid-up capital nor in respect of any stock or shares which he shall not have held for three months previous to the time fixed for holding the meeting at which he proposes to vote or (if such meeting be an adjourned meeting) to the time originally fixed for holding the same.

Proxies.

53. Every member may vote by proxy but his proxy must be a member entitled to vote on his own behalf save that a corporation being a member of the Company may appoint as its proxy any officer of such corporation whether a member of the Company or not.

Form of proxy  
&c.

54. Every appointment of a proxy shall be in writing in such form as the directors shall from time to time determine and shall be signed by the appointor or his attorney or if such appointor is a corporation shall be sealed under its common seal or be signed by its attorney and shall be deposited at the office at least seventy-two hours before the time of holding the meeting or adjourned meeting or poll at which it is to be acted upon.

Voting in case  
of joint  
holders.

55. Where there are joint registered holders of any shares or stock any one of such persons may vote at any general meeting either personally or by



proxy in respect of such shares or stock as if he were solely entitled thereto and if more than one of such joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first in the register in respect of such shares or stock shall alone be entitled to vote in respect thereof.

A.D. 1904.

56. No proxy shall be entitled to vote except at the particular meeting mentioned in the appointment or any adjournment thereof or any poll that may take place at or in consequence of any such meeting or adjournment.

When proxy  
may vote.

57. A vote given in accordance with the terms of an appointment of a proxy shall be valid notwithstanding the previous death of the principal or revocation of the proxy or transfer of the share in respect of which the vote is given provided no intimation in writing of the death revocation or transfer shall have been received at the office before the meeting.

When vote by  
proxy valid  
though autho-  
rity revoked.

58. No instrument of proxy shall be deemed to have been revoked by the member who shall have given it having been personally present at the meeting at which the poll shall have been demanded.

Presence of mem-  
ber not a revoca-  
tion of authority  
given by the  
instrument of  
proxy.

59. The directors may if they think fit before any general meeting deliver or send to all or any of the members forms of proxies for signature appointing any one or more of the directors proxies to vote for such member.

Directors may  
send proxy  
papers to mem-  
bers for appoint-  
ment of selves as  
proxies.

60. No member shall be entitled to exercise any right as a member of the Company or to be present or to vote on any question either personally or by proxy or as proxy for another member at any general meeting or upon a poll or be reckoned in a quorum whilst any call instalment or other sum shall be due and payable to the Company in respect of any of the shares or stock of such member.

Member dis-  
qualified not to  
be present or  
vote &c. whilst  
call &c. in  
arrear.

#### DIRECTORS.

61. The number of directors of the Company shall be not less than ten nor more than twenty-one and the directors in office when these articles come into operation shall be considered the first directors hereunder.

Number of  
directors.

62. The directors may at any time by a resolution in which not less than two-thirds of the total number of directors for the time being concur and passed by a meeting of directors specially convened for that purpose increase above twenty-one or diminish below ten the number of directors but such resolution shall not be in force or acted upon unless the same shall be confirmed by a general meeting.

Increase.

63. Save as in these articles mentioned no person shall be eligible as a director who shall not hold one hundred pounds at least of paid-up capital or who shall be a director manager clerk or other official in any other fire or life insurance company or who shall be a female If at any time a sufficient number of persons holding one hundred pounds at least of paid-up capital

Qualification.



A.D. 1904. cannot be found eligible and willing to act as directors then and in such case it shall be lawful either for a general meeting or for the directors as the case may require to make up the deficiency from the other members holding not less than twenty pounds of paid-up capital and qualified in other respects.

When office  
vacated.

64. A director shall be disqualified from acting in his office—

- (1) If without the sanction of a general meeting he accept any other office or place of profit under the company except that of managing director or departmental manager or trustee or receiver under or in respect of any mortgage or charge to which the Company is entitled ;
- (2) If he become bankrupt or suspend payment or compound with his creditors ;
- (3) If he be found lunatic or become of unsound mind ;
- (4) If he cease to hold the required amount of paid-up capital ;
- (5) If without the sanction of a general meeting he become a director manager clerk or other official in any other fire or life insurance company ;
- (6) If he absent himself from the meetings of the directors during a period of six months without special leave of absence from the directors.

Rotation of  
retirement.

65. At the ordinary general meeting in each year one-third of the directors for the time being or the number nearest to but not exceeding one-third of the directors shall retire from office the directors to retire on each occasion being those who have been longest in office and if those who have served for the same time cannot agree their retirement shall be decided by lot among themselves or at the said ordinary general meeting The length of time a director has been in office shall be computed from the last election when he has previously vacated office.

Supply of  
vacancies.

66. At the ordinary general meeting in each year directors shall be elected to supply the place of those retiring from office or such vacancies as shall be required to be filled up having regard to the power to increase or diminish the number and the retiring directors shall be eligible for re-election but no member not being a retiring director or a person nominated by the directors shall be eligible for election to the office of a director at any general meeting unless he shall at least fourteen days before such meeting leave at the office a notice in writing signifying his willingness to be elected a director at that meeting.

Resignation of  
directors.

67. In case any director shall at any time be desirous of resigning his office and of such his desire shall give notice in writing to the chairman or secretary of the Company the office of such director shall become vacant on the acceptance of such resignation by the directors.



68. It shall be lawful for a meeting of directors specially called for that purpose by a resolution in which not less than two-thirds of the total number of directors for the time being in the United Kingdom shall concur to remove from office any director whose continuance shall appear to the directors voting in favour of such resolution to be prejudicial to the interests of the Company.

A.D. 1904.

Removal of a  
director by the  
board.

69. The Company may by special resolution remove any director before the expiration of his period of office and appoint another qualified person in his stead.

Or by a general  
meeting.

70. The directors shall have power from time to time and at any time to appoint any qualified person as a director either to fill a casual vacancy or as an addition to the directorate but so that the total number of directors shall not at any time exceed the maximum number fixed as above and any director so appointed shall hold office only until the next ordinary meeting and shall then be eligible for re-election but no appointment under this clause shall have effect unless two-thirds at least of the directors for the time being in the United Kingdom concur therein.

Power for  
directors to  
appoint ad-  
ditional  
directors.

71. If and so far as an ordinary meeting shall fail to complete the election of directors those retiring shall if willing to serve be declared to have been re-elected unless (owing to a diminution of the number of directors) the number retiring from office is larger than that of the vacancies in which case the directors continuing in office shall decide which of those retiring shall be deemed to have been re-elected.

Default in  
election.

72. The directors shall receive as remuneration for their services for the financial year immediately preceding the day on which the first ordinary meeting of the company after its registration under the Companies Acts 1862 to 1900 is held and for each succeeding financial year such a sum of money as they shall fix not exceeding six thousand pounds and any such remuneration shall be distributed by the directors amongst themselves in such proportions and manner as they may determine but the Company may from time to time at ordinary general meetings modify any of the provisions of this clause without giving notice in this behalf provided that if any member other than the chairman of the Company intends to propose a resolution for modifying any such provisions he shall at least seven clear days before the meeting leave at the office a notice in writing duly signed by him signifying such intention.

Remuneration  
of directors.

#### PROCEEDINGS OF DIRECTORS.

73. The directors shall at their first meeting after each ordinary general meeting elect one of their body to be chairman and one other (or two if they think fit) to be a deputy chairman (or deputy chairmen) who shall hold office till the next ordinary general meeting and the directors shall also within fourteen days from the death or resignation of any chairman or deputy chairman elect another of their body in his stead and each such chairman and

Chairman and  
deputy chair-  
man.



[Ch. xxxiv.]      *Liverpool and London and*      [4 Edw. 7.]  
*Globe Insurance Company's Act, 1904.*

A.D. 1904.      deputy chairman shall be chairman and deputy-chairman respectively of the Company for the time being.

Officiation  
where no  
chairman  
present.

74. A deputy chairman shall only officiate as chairman on the death in the absence or on the refusal to act of the chairman and in their absence or refusal to act the directors present shall appoint any director present to be chairman of that meeting and any person who shall take the chair at the commencement of business at any meeting shall if able and willing act during the whole of the meeting as chairman thereof.

Board of direc-  
tion where and  
when to meet.

75. The directors shall meet together for the despatch of business at the office on the first Tuesday in each month or at such other times as they shall appoint among themselves and at such other times as they shall be duly convened in manner herein-after expressed and every such meeting shall be styled a board of direction.

Who may call  
a directors'  
meeting.

76. The chairman or a deputy chairman or any two directors may at any time require the secretary to call a meeting of the directors and the same shall be called by sending to each director a circular letter through the Post Office or left at his usual place of business or abode as it appears in the books of the Company mentioning the place day and hour of such meeting.

Quorum.

77. The quorum of a meeting of the directors shall be three directors and no business shall be transacted at any meeting of the directors unless a quorum be present at the transaction of such business.

Decision of  
questions.

78. Questions arising at any meeting of directors shall be decided by a majority of votes and in case of an equality of votes the chairman shall have a second or casting vote.

Power of  
meeting.

79. A meeting of the directors for the time being at which a quorum is present shall be competent to exercise all or any of the authorities powers and discretions by or under these articles for the time being vested in or exerciseable by the directors generally.

Power to  
appoint Com-  
mittees and to  
delegate.

80. The directors may delegate any of their powers to committees consisting of such member or members of their body as they think fit Any committee so formed shall in the exercise of the powers so delegated conform to any regulations that may from time to time be imposed on it by the directors.

Proceedings of  
committees.

81. The meetings and proceedings of any such committee consisting of two or more members shall be governed by the provisions herein contained for regulating the meetings and proceedings of the directors so far as the same are applicable thereto and are not superseded by any regulations made by the directors under the last preceding clause Nevertheless if at the time and place fixed for a committee meeting a quorum shall not be present the member or members of the committee present may exercise such powers as the meeting if duly constituted could have exercised.



82. All acts done at any meeting of the directors or of a committee of directors or by any person acting as a director shall notwithstanding that it shall afterwards be discovered that there was some defect in the appointment of such directors or persons acting as aforesaid or that they or any of them were disqualified be as valid as if every such person had been duly appointed and was qualified to be a director.

A.D. 1904.

When acts of directors or committee valid notwithstanding defective appointment &c.

83. If any director being willing shall be called upon to perform extra services or to make any special exertions in going or residing abroad or otherwise for any of the purposes of the Company the Company shall remunerate such director either by a fixed sum or otherwise as may be determined by the directors and such remuneration may be either in addition to or in substitution for his share in the remuneration above provided.

Remuneration for extra service.

84. No director shall be disqualified by his office from contracting with the Company either as vendor purchaser or otherwise nor shall any such contract or any contract or arrangement entered into by or on behalf of the Company in which any director shall be in any way interested be avoided nor shall any director so contracting or being so interested be liable to account to the Company for any profit realised by any such contract or arrangement by reason only of such director holding that office or of the fiduciary relations thereby established but it is declared that the nature of his interest must be disclosed by him at the meeting of the directors at which the contract or arrangement is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest and that no director shall as a director vote in respect of any contract or arrangement in which he is so interested as aforesaid and if he do vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity and it may at any time or times be suspended or released to any extent by a general meeting. A general notice that a director is a member of any specified firm or company and is to be regarded as interested in all transactions with that firm or company shall be a sufficient disclosure under this clause as regards such director and the said transactions and after such general notice it shall not be necessary for such director to give a special notice of any particular transaction with that firm or company.

Directors may contract with Company.

Where a director is directly or indirectly interested in any insurance contracts which shall in the ordinary course of business be effected by such director through the manager or other proper officer of the Company disclosure to him that the director is interested shall be sufficient disclosure for the purposes of this clause and such manager or officer may deal with any such contract as regards terms premium rebate commission and otherwise as freely as he could if the director were not interested.

#### POWERS OF DIRECTORS.

85. The management of the business and the control of the Company shall be vested in the directors who in addition to the powers and authorities

General powers of directors.



A.D. 1904. by these articles or by any Act of Parliament expressly conferred upon them  
— may exercise all such powers and do all such acts and things as may be  
exercised or done by the Company and are not hereby or by statute expressly  
directed or required to be exercised or done by the members in general  
meeting but subject nevertheless to any resolutions from time to time passed  
by the members in general meeting provided that no resolution shall  
invalidate any prior act of the directors which would have been valid if  
such resolution had not been passed.

Special powers  
of directors.

86. Without prejudice to the general powers conferred by the last  
preceding clause and to the other powers conferred by these articles the  
directors shall have the following powers that is to say power—

To appoint  
officers ser-  
vants and  
others.

(1) To appoint and employ and remove such managers actuaries  
secretaries and other officers physicians surgeons bankers brokers  
solicitors agents accountants clerks servants and persons for  
permanent temporary or special services as the directors in their  
absolute discretion may from time to time think fit for the  
management and carrying on of the business of the Company  
and to determine their duties and to allow and pay to them such  
commission charges salaries wages or other remuneration and to  
give such gratuities for extraordinary services and to grant such  
pensions to the staff as the directors in their absolute discretion  
shall think fit and to require such security for the due and  
faithful discharge and performance by such persons of the duties  
of their respective offices as the directors shall think fit :

To determine  
form of policies  
and how they  
shall be signed  
&c.

(2) To determine from time to time the form of the Company's policies  
of insurance and to direct from time to time in what manner and  
by whom every or any policy of insurance shall be signed and  
executed :

To settle  
losses.

(3) To settle all losses at such times and in such manner as they shall  
think fit :

To draw &c.  
bills notes &c.

(4) To draw accept and endorse all bills of exchange promissory notes  
and other negotiable securities and all cheques or orders for the  
payment of money in the name or on account of the Company :

To delegate  
powers.

(5) To delegate upon such conditions and subject to such regulations as  
they think fit all or any of their powers (except the power of  
issuing stock and shares and making calls upon shares) to any  
committee consisting of such member or members of their body  
as they think fit :

To authorise  
manager &c.  
to sign policies  
&c.

(6) To authorise upon such conditions as they think fit the general  
manager sub-manager departmental manager secretary or assistant  
secretary to sign and execute policies effect insurances settle  
losses draw accept and endorse bills of exchange promissory notes  
and other negotiable securities cheques and orders for payment  
of money in the name or on account of the Company :



- (7) To make sign and execute or authorise any one or more of the directors or the general manager or secretary to make sign and execute powers of attorney enabling any person or persons jointly or severally to do every or any act matter or thing which the directors themselves could do and with or without power to sub-delegate: A.D. 1904.  
To execute powers of attorney.
- (8) From time to time to appoint such persons corporations or societies as they shall think fit resident or formed in the United Kingdom or in any colony dominion or dependency thereof or in any foreign country to be trustees for the Company with such powers and upon such terms as the directors think fit and to provide for the remuneration of any such trustees: To appoint trustees.
- (9) To lend any money of the Company on real or personal or other security in conjunction with any money to be lent by any other persons or person or joint stock or other company or society as or by way of contributory loan and to accept the security for the same in the name or names or under the legal control of any trustees or trustee for the Company either alone or in conjunction with any other persons or person company or society or permit the same to be taken exclusively in the names or name or under the legal control of any persons or person or joint stock or other company or society as the directors shall deem expedient and every person company or society in whose name or under whose legal control any such security shall be taken shall be deemed to be a trustee for the Company within the meaning of these articles: To join with others in lending money.
- (10) To obtain a charter or other act of recognition from any foreign government in whose dominions any local board or agency may be established in such form and for such purposes as they may deem advisable and be able to procure: To obtain recognition of Company abroad.
- (11) To form or assist in forming any company or hold and dispose of shares in any now or hereafter existing company in any of the dominions colonies or dependencies of the United Kingdom or in any foreign country or state but this power shall only be acted upon by virtue and in accordance with a resolution in which not less than three-fourths of the total number of directors for the time being in the United Kingdom shall concur passed at a board of direction specially convened for that purpose: To promote and deal with shares in other companies.
- (12) To accept from any member on such terms and conditions as shall be agreed a surrender of his shares or stock or any part thereof: To accept surrenders of shares and stock.
- (13) To give to any officer or other person employed by the Company a commission on the profits of any particular branch or class of business in the Company and such commission shall be treated as part of the working expenses of the Company: To give commissions to officers &c.



- A.D. 1904.
- To form a reserve fund (14) To set aside out of the profits of the Company such sum as they think proper as a reserve fund to meet contingencies or for paying or equalising dividends or for repairing improving and maintaining any of the property of the Company and for such other purposes as the directors shall in their absolute discretion think conducive to the interests of the Company :
- To form a re-insurance fund. (15) To form a "re-insurance fund" to be varied and regulated in such manner as they may think proper :
- To institute conduct defend &c. legal proceedings. (16) To institute conduct defend compound or abandon any legal proceedings by or against the Company or its officers or otherwise concerning the affairs of the Company against or by any person whether a member or not and also to compound and allow time for payment or satisfaction of any debts due and of any claims or demands by or against the Company :
- To refer to arbitration. (17) To refer any claims or demands by or against the Company to arbitration and observe and perform the awards :
- To give receipts releases &c. (18) To make and give receipts releases and other discharges for money payable to the Company and for the claims and demands of the Company :
- To act in bankruptcy matters. (19) To act on behalf of the Company in all matters relating to bankrupts and insolvents.

#### LOCAL MANAGEMENT.

Local management. 87. The directors may from time to time provide for the management and transaction of the affairs of the Company in any specified locality whether at home or abroad in such manner as they think fit and the provisions contained in the three next following clauses shall be without prejudice to the general power conferred by this clause.

Local boards. 88. The directors from time to time and at any time may establish any local board or agency for managing any of the affairs of the Company in any such specified locality or may appoint any persons to be members of such local board or local directors or managers or agents and may fix their remuneration and the directors from time to time and at any time may delegate to any person so appointed any of the powers authorities and discretions for the time being vested in the directors (except the power of issuing stock and shares and making calls upon shares) and may authorise the members for the time being of any such local board or any of them to fill up any vacancies therein and to act notwithstanding vacancies and any such appointment or delegation may be made on such terms and subject to such conditions and with such limitations and restrictions as the directors may think fit and the directors may at any time remove any person so appointed and may annul or vary any such delegation and may notwithstanding any such delegation exercise all or any of the powers authorities and discretions delegated as fully and freely as if the same had not been delegated.



89. The directors may at any time and from time to time by power of attorney under the seal appoint any person or persons to be the attorney or attorneys of the Company for such purposes and with such powers authorities and discretions (not exceeding those vested in or exerciseable by the directors under these presents) and for such period and subject to such conditions as the directors may from time to time think fit and any such appointment may (if the directors think fit) be made in favour of the members or any of the members of any local board established as aforesaid or in favour of any company or of the members directors nominees or managers of any company or firm or otherwise in favour of any fluctuating body of persons whether nominated directly or indirectly by the directors and any such power of attorney may contain such powers for the protection or convenience of persons dealing with such attorneys as the directors may think fit.

A.D. 1904

Powers of  
attorney.

90. Any such delegates or attorneys as aforesaid may be authorised by the directors to sub-delegate all or any of the powers authorities and discretions for the time being vested in them.

Sub-delegation.

91. The Company may exercise the powers conferred by the Companies Seals Act 1864 and such powers shall accordingly be vested in the directors And the Company may cause to be kept in any colony in which it transacts business a branch register of members resident in such colony and the word "colony" in this clause shall have the meaning assigned thereto by the Companies (Colonial Registers) Act 1883 and the directors may from time to time make such provisions as they may think fit respecting the keeping of any such branch register.

Seals Act 1864  
and Companies  
(Colonial  
Registers) Act  
1883.

92. The directors may comply with the requirements of any local law which in their opinion it shall in the interests of the Company be necessary or expedient to comply with.

Local law.

#### BYELAWS.

93. The directors may from time to time make alter and repeal byelaws for the management of the business of the Company in all its branches and for regulating the duties and conduct of its affairs and any other matters that require regulation Provided that—

Power for  
directors to  
make &c. bye-  
laws.

(A) A byelaw inconsistent with any Act of Parliament or the law of the place where it is to operate or with any provision herein contained is ipso facto void ;

(B) Any byelaw may at any time be rescinded by an extraordinary resolution of the Company in general meeting.

#### POLICIES OF ASSURANCE &c.

94. The directors may in their absolute discretion accept on such terms as they think fit or refuse proposals for assurances annuities and endowments

Acceptance of  
proposals for  
assurance &c.



A.D. 1904.

and settling  
losses.

or any other authorised business or settle any losses at such times respectively and in such manner as they think fit.

Policies and  
annuity deeds  
may confine  
liability only to  
assets of Com-  
pany.

95. The directors may cause to be inserted in any assurance or annuity or other contract granted by the Company other than bills of exchange promissory notes or other negotiable instruments a proviso that the funds and property for the time being of the Company shall alone be liable to satisfy and make good any claim arising out of any such contract and that no member shall incur any personal liability in respect thereof.

Signature of  
policies and  
cheques and  
other docu-  
ments.

96. All policies (including annuity deeds and endowment policies and all other policy contracts) and cheques and orders on the Company's bankers and receipts for premiums or other annual or periodical payments in favour of the Company and for any other payment made to the Company in the ordinary course of business shall be well and sufficiently signed if signed by a director officer or other person duly authorised so to do.

Contract of  
assurance  
deemed to be  
effected on  
payment of  
premium.

97. A person effecting an insurance or endowment with the Company is to be considered as assured by the Company as soon as he has paid the first premium on the policy contracted to be granted to him although the policy itself has not been actually issued.

#### TRUSTEES.

Directors may  
appoint trust-  
tees.

98. The directors may if in their discretion they think fit from time to time and at any time appoint any person or persons to accept and hold any property belonging to the Company or in which it is interested in trust for the Company or for any other purposes and may execute and do all such deeds and things as may be requisite in relation to any such trusts and may provide for the remuneration of such trustees Any of the directors may act as trustees.

Persons  
abroad may be  
appointed.

99. When the directors think it expedient any foreigner or other person out of the jurisdiction may be appointed a trustee for any such purpose.

Delegation by  
trustees.

100. When the directors think it expedient any trustee for the Company may be authorised to delegate all or any of the trustees' powers or discretions vested in him.

Trustees to act  
under direc-  
tions.

101. The several persons who for the time being hold property for the Company (including those acting when these articles come into operation) shall act in all respects under and in accordance with the directions of the Company and of the directors.

#### INVESTMENTS.

Investments.

102. The directors may subject to any restrictions imposed by the Company in general meeting invest any of the funds of the Company—

- (1) In the purchase of any of the public stocks or funds or Government securities of the United Kingdom or India or any colony or



dependency of the United Kingdom or any foreign country or state : A.D. 1904.

- (2) In the purchase of lands buildings or hereditaments or any interest therein or rights connected therewith whether in the United Kingdom or elsewhere :
- (3) In the purchase of ground rents head rents chief rents feu duties ground annuals rentcharges or any other kind of rents or income issuing out of or charged on lands whether in the United Kingdom or elsewhere :
- (4) In the purchase of stocks funds shares debentures debenture stock mortgages or securities of any corporation body or company municipal county local commercial or of any other description whatsoever in the United Kingdom or India or any colony or dependency of the United Kingdom or any foreign country or state :
- (5) In the purchase of mortgages charges annuities liens and encumbrances affecting any property on which the Company has power to lend :
- (6) In the purchase of policies annuities or contracts of any kind issued granted or made by the Company or in respect of which it is under any liability :
- (7) In the purchase of life reversionary or other interests whether absolute contingent or expectant in property of any kind whether determinable or not :
- (8) In the purchase of any other property or security real or personal movable or immovable and wheresoever situated which the directors may think fit to acquire :
- (9) Or on the security of any of the foregoing :
- (10) On loans in conformity with the custom or practice for the time being of any stock exchange :
- (11) On deposit with any banker or joint stock company.

103. The directors shall have power from time to time at their discretion to vary and transpose any of the investments herein-before mentioned An investment may be made or continued in the names of the trustees in all cases in which the directors shall deem the interposition of trustees to be convenient and the directors may appoint and remove trustees from time to time It shall be no objection to any investment that it is to bearer. Power to vary.

#### THE SEAL.

104. The directors shall provide for the safe custody of the seal and the seal shall never be used except by the authority of the directors or a committee of the directors and in the presence of two directors at least Seal.



A.D. 1904. — who shall sign every instrument to which the seal is affixed and every such instrument shall be countersigned by the secretary.

#### DIVIDENDS.

Declaration of dividends. 105. The directors may with the sanction of the Company in general meeting declare a dividend to be paid to the members according to their rights and interests in the profits.

Restriction on amount of dividend. 106. No larger dividend shall be declared than is recommended by the directors but the Company in general meeting may declare a smaller dividend.

Dividend to be paid out of profits only and not carry interest. 107. No dividend shall be payable except out of the profits of the Company (accumulated or otherwise) and no dividend shall carry interest as against the Company.

What to be deemed profits. 108. The declaration of the directors as to the amount of the profits of the Company shall be conclusive.

Interim dividends. 109. The directors may from time to time pay to the members on account of the next forthcoming dividend such interim dividends as in their judgment the position of the Company justifies.

Debts may be deducted. 110. The directors may retain any dividends on which the Company has a lien and may apply the same in or towards satisfaction of the debts liabilities or engagements in respect of which the lien exists.

Power to retain dividends on shares of deceased or bankrupt member. 111. The directors may retain the dividends payable upon shares or stock in respect of which any person is under the transmission clause entitled to become a member or which any person under that clause is entitled to transfer until such person shall become a member in respect of such shares or stock or shall duly transfer the same.

Dividend to joint holders. 112. In case several persons are registered as the joint holders of any share or stock any one of such persons may give effectual receipts for all dividends and payments on account of dividends in respect of such share or stock.

Transfers not to pass dividends declared before registration. 113. A transfer of shares or stock shall not pass the right to any dividends declared thereon before the registration of the transfer.

Dividends payable by posted cheque. 114. Unless otherwise directed any dividend may be paid by cheque or warrant sent through the post to the registered address of the member or person entitled or in case of joint holders to that one of them first named in the register in respect of the joint holdings. Every such cheque shall be made payable to the order of the person to whom it is sent.

#### ACCOUNTS.

Accounts to be kept. 115. The directors shall cause true accounts to be kept of the sums of money received and expended by the Company and the matters in respect of which such receipt and expenditure takes place and of the assets credits and



liabilities of the Company The books of account shall be kept at the office or at such other place or places as the directors think fit. A.D. 1904. —

116. The directors shall from time to time determine whether and to what extent and at what times and places and under what conditions or regulations the accounts and books of the Company or any of them shall be open to the inspection of the members and no member shall have any right of inspecting any account or book or document of the Company except as conferred by statute or authorised by the directors or by a resolution of the Company in general meeting. Inspection by members.

117. At the ordinary meeting in every year the directors shall lay before the Company a revenue account and a balance sheet containing a summary of the property and liabilities of the Company made up to the thirty-first day of December then last or such other day as the directors may from time to time determine from the time up to which the last preceding account and balance sheet were made. Annual account and balance sheet.

118. Every such account and balance sheet shall be accompanied by a report of the directors as to the state and condition of the Company and as to the amount (if any) which they recommend to be paid out of the profits by way of dividend to the members and the amount (if any) which they propose to carry to the reserve fund or the reinsurance fund according to the provisions in that behalf herein-before contained and the account report and balance sheet shall be signed by two directors and countersigned by the secretary. Annual report of directors.

119. A printed copy of every such account balance sheet and report shall seven days previously to the meeting be served on each of the registered holders of shares in the manner in which notices are herein-after directed to be served and at the same time two copies of such documents shall be forwarded to the secretary of the share and loan department of each of the stock exchanges at Liverpool and London. Copies to be sent to members and to Stock Exchange.

#### AUDIT.

120. Once in every year the accounts of the Company shall be examined and the correctness of the revenue account and balance sheet ascertained by one or more auditor or auditors. Accounts to be audited annually.

121. The Company at each ordinary meeting shall appoint an auditor or auditors to hold office until the next ordinary meeting and the following provisions shall have effect (that is to say):— Auditors.

(1) If an appointment of auditors is not made at any particular ordinary meeting the Board of Trade may on the application of any member of the Company appoint an auditor for the current year and fix the remuneration to be paid to him by the Company for his services:

(2) A director or officer of the Company shall not be capable of being appointed auditor:



A.D. 1904.

- (3) The first auditors shall be those in office when these articles are registered and shall hold office until the first ordinary meeting after such registration unless previously removed by a resolution of the shareholders in general meeting in which case the shareholders at such meeting may appoint auditors :
- (4) The directors may fill any casual vacancy in the office of auditor but while any such vacancy continues the surviving or continuing auditor or auditors (if any) may act :
- (5) The remuneration of the auditors of the Company shall be fixed by the Company in general meeting except that the remuneration of any auditors appointed to fill any casual vacancy may be fixed by the directors :
- (6) Every auditor shall have a right of access at all times to the books and accounts and vouchers of the Company and shall be entitled to require from the directors and officers of the Company such information and explanation as may be necessary for the performance of the duties of the auditors and the auditors shall sign a certificate at the foot of the balance sheet stating whether or not all their requirements as auditors have been complied with and shall make a report to the shareholders on the accounts examined by them and on every balance sheet laid before the Company in general meeting during their tenure of office and in every such report shall state whether in their opinion the balance sheet referred to in the report is properly drawn up so as to exhibit a true and correct view of the state of the Company's affairs as shown by the books of the Company and such report shall be read before the Company in general meeting.

When accounts  
to be deemed  
finally settled.

122. Every account of the directors when audited and approved by a general meeting shall be conclusive except as regards any error discovered therein within three months next after the approval thereof Whenever any such error is discovered within that period the account shall forthwith be corrected and thenceforth shall be conclusive.

#### NOTICES.

How notices to  
be served on  
members.

123. A notice may be served by the Company upon any member either personally or by sending it through the post in a prepaid letter envelope or wrapper addressed to such member at his registered place of address.

Members resi-  
dent abroad.

124. Each holder of registered shares or registered stock whose registered place of address is not in the United Kingdom may from time to time notify in writing to the Company an address in the United Kingdom which shall be deemed his registered place of address within the meaning of the last preceding clause.



125. As regards those members who have no registered place of address a notice posted up in the office shall be deemed to be well served on them at the expiration of twenty-four hours after it is so posted up.

A.D. 1904.

Notice where  
no address.

126. Any notice required to be given by the Company to the members or any of them and not expressly provided for by these presents shall be sufficiently given if given by advertisement. Any notice required to be or which may be given by advertisement shall be advertised once in two Liverpool and once in two London daily newspapers.

When notice  
may be given  
by advertise-  
ment.

127. All notices shall with respect to any registered shares or registered stock to which persons are jointly entitled be given to whichever of such persons is named first in the register and notice so given shall be sufficient notice to all the holders of such shares or stock.

Notice to joint  
holders.

128. Any notice sent by post shall be deemed to have been served on the day following that on which the letter envelope or wrapper containing the same is posted and in proving such service it shall be sufficient to prove that the letter envelope or wrapper containing the notice was properly addressed and put into the post office.

When notice  
by post deemed  
to be served.

129. Every person who by operation of law transfer or other means whatsoever shall become entitled to any share or stock shall be bound by every notice in respect of such share or stock which previously to his name and address being entered on the register shall be duly given to the person from whom he derives his title to such share or stock.

Transferees  
&c. bound by  
prior notices.

130. Any notice or document delivered or sent by post to or left at the registered address of any member in pursuance of these presents shall notwithstanding such member be then deceased and whether or not the Company have notice of his decease be deemed to have been duly served in respect of any registered shares or registered stock whether held solely or jointly with other persons by such member until some other person be registered in his stead as the holder or joint holder thereof and such service shall for all purposes of these presents be deemed a sufficient service of such notice or document on his or her heirs executors or administrators and all persons if any jointly interested with him or her in any such shares or stock.

Notice valid  
though mem-  
ber deceased.

131. Where a given number of days' notice or notice extending over any other period is required to be given the day of service shall be counted in such number of days or other period.

How time to  
be counted.

132. The signature to any notice to be given by the Company may be written or printed.

Signatures for  
Company.

#### INDEMNITY AND RESPONSIBILITY.

133. Every director manager trustee secretary and other officer or servant of the Company shall be indemnified by the Company against and

Indemnity.



A.D. 1904. it shall be the duty of the directors out of the funds of the Company to pay  
all costs losses and expenses which any such officer or servant may incur or  
become liable to by reason of any contract entered into or act or deed done  
by him as such officer or servant or in any way in the discharge of his duties  
including travelling expenses.

Individual re-  
sponsibility of  
directors.

134. No director or other officer of the Company shall be liable for the  
acts receipts neglects or defaults of any other director or officer or for  
joining in any receipt or other act for conformity or for any loss or expense  
happening to the Company through the insufficiency or deficiency of title  
to any property acquired by order of the directors for or on behalf of the  
Company or for the insufficiency or deficiency of any security in or upon  
which any of the moneys of the Company shall be invested or for any loss or  
damage arising from the bankruptcy insolvency or tortious act of any person  
with whom any moneys securities or effects shall be deposited or for any loss  
or damage occasioned by any error of judgment or oversight on his part or  
for any other loss damage or misfortune whatever which shall happen in the  
execution of the duties of his office or in relation thereto unless the same  
happen through his own dishonesty.

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